

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEITH RICHARDSON,
Petitioner
VS.
LACHON RICHARDSON,
Respondent

) Case Number: FDI-20-794120
)
) Hearing Date: July 7, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 403
)
) Presiding: BOBBY P. LUNA
)

REQUEST FOR ORDER: MOTION TO SET ASIDE JUDGEMENT CODE 2122; CCP 473

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Keith Richardson and Respondent Lachon Richardson.
- 2) On 2/28/25, the Court entered judgment, which includes a provision for Petitioner to pay Respondent \$160,000 total in \$3,500 monthly payments due on the 1st of each month, commencing 4/1/24 until the balance is paid in full. The amount payable was contingent on Petitioner's accounting documents showing that business earnings from Keith's Chicken and Waffles were no greater than 5% above \$100,000 annually for 2023, and Petitioner was to provide the accounting paperwork within 30 days.
- 3) On 12/17/25, Petitioner filed a Request for Order seeking to set aside judgment under Code of Civil Procedure section 473 and Family Code section 2122. Petitioner asserts that he lacks the ability to comply with the payment terms of the judgment because his income is generated from a small business with limited liquid funds. Petitioner further asserts the Court relied on false information when entering judgment because Respondent represented that she has a \$3,000

1 monthly rent obligation despite living with her parents rent free. Petitioner states the motion is
2 based on, “actual fraud, perjury, failure to disclose material facts, and attorney abandonment.”

3 4) On 2/23/26, Respondent filed a Motion to Strike Petitioner’s Request for Order pursuant to Code
4 of Civil Procedure section 436. Respondent’s request is based on a lack of supporting documents,
5 sufficient facts, and lack of proper service under Code of Civil Procedure section 1010 and
6 California Rules of Court, rule 5.92(b)(1). Attached to Respondent’s Motion to Strike are the
7 documents with which Respondent was served, and Petitioner’s supportive declaration (which
8 was filed with the Court) is not attached.

9 5) At the prior 3/3/26 hearing, the Court made a finding of good cause to continue the hearing to
10 7/7/26 at 9 AM in Dept. 403 for proper service to be effectuated and ordered as follows:

11 a. The Court declines to exercise its discretion under Code of Civil Procedure section 436;
12 Respondent’s Motion to Strike is therefore DENIED.

13 b. At least 16 Court days prior to the next hearing date, Petitioner shall reserve on
14 Respondent the 12/17/25 Request for Order and supportive declaration using a service
15 method authorized by the Code of Civil Procedure and then file form FL-335 (Proof of
16 Service) with the Court confirming service was effectuated.

17 c. At least 9 Court days prior to the next hearing date, Respondent may file a Responsive
18 Declaration.

19 d. At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
20 Declaration.

21 6) On 3/3/26, Respondent filed a Request for Order seeking a Writ of Execution. Respondent
22 requests the Court issue Writ of Execution to permit collection on the judgment entered 2/28/25.
23 Respondent attached a proposed Writ of Execution as Exhibit A to the Request for Order, which
24 indicates the total amount due is \$190,155.07.

25 7) On 3/12/26, Respondent filed a Proof of Service by First-Class Mail – Civil indicating that the
26 Request for Order and supportive pleadings were served on Petitioner on 3/12/26.

27 8) On 5/13/26, Petitioner filed a Responsive Declaration in opposition to Respondent’s Request for
28 Order. Petitioner opposes the issuance of a Writ of Execution, asserting there are unresolved
29 issues concerning the judgment entered 2/28/25.

- 1 9) On 5/14/26, the Court made a finding of good cause to continue Respondent's 3/3/26 Request for
2 Order (seeking a Writ of Execution to permit collection on the judgment entered 2/28/25) to
3 7/7/26 at 9 AM in Dept. 403 to be heard on the same date as Petitioner's 12/17/25 Request for
4 Order (seeking to set aside the judgment under Code of Civil Procedure section 473 and Family
5 Code section 2122).
- 6 10) On 6/23/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
7 Order. Respondent requests the Court deny Petitioner's request to set aside the judgment entered
8 2/28/25 and issue \$5,000 in Family Code section 271 sanctions against Petitioner. Respondent
9 asserts that Petitioner still did not effectuate proper service of the 12/17/25 Request for Order.

10 **B. Findings and Order**

- 11 1) Petitioner's 12/17/25 Request for Order seeking to set aside judgment under Code of Civil
12 Procedure section 473 and Family Code section 2122 is DENIED without prejudice. Petitioner
13 failed to effectuate proper service despite being provided additional time to do so – see Findings
14 and Order After Hearing filed 5/11/26.
- 15 2) The Court is inclined to GRANT Respondent's request for issuance of a Writ of Execution to
16 permit collection on the judgment entered 2/28/25; however, Respondent did not provide a
17 sufficient factual basis upon which the Court can grant Respondent's request because: (a) the
18 terms of the judgment require Petitioner to pay Respondent \$3,500 per month commencing 4/1/24
19 until the total \$160,000 balance is paid in full unless Petitioner is more than 10 days late with
20 payments for more than two months, at which point the entire amount becomes due with 10%
21 legal interest accruing; (b) Respondent did not explain to the Court how the \$30,115.07 in legal
22 interest was calculated in the proposed Writ of Execution attached as Exhibit A to her 3/3/26
23 Request for Order; and (c) Respondent did not present any evidence as to when the \$160,000
24 balance became due to 10% legal interest accruing.
- 25 3) **The parties are ordered to appear**, and Respondent shall be prepared to inform the Court
26 when the \$160,000 balance became due with 10% legal interest accruing (i.e., when Petitioner
27 was more than 10 days late with payments for more than two months). The Court requires an
28 accounting prior entering the Writ of Execution.
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1 4) Respondent's request for \$5,000 in Family Code section 271 sanctions is DENIED as the Court
2 finds conduct on both sides caused unnecessary delay.
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